



Stephen Cooke <stephencooke.c@gmail.com>

Re: Cooke & Cooke - Family Law Matter - No response

5 messages

Stephen Cooke <stephencooke.c@gmail.com>

Mon, Sep 23, 2024 at 9:55 AM

To: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Hi Avalon,

I understand that the delay appears to be due to awaiting a response from Delaney. However, in the interest of moving things forward, I would like to ask if we can proceed with what is due to me if we do not receive their response by end of day.

Given Delaney's continued tactics, I believe it's important to avoid further delays and act promptly on what is rightfully due.

Please let me know if this is feasible.

Kind regards,

Stephen Cooke

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

On Mon, Sep 23, 2024 at 3:45 PM Avalon Carnall <acarnall@ramsdenlaw.com.au> wrote:

Dear colleagues,

I refer to the above matter and below correspondence.

Please kindly provide a response to our below email so we may provide the funds to each party.

Thank you.

Regards,

AVALON CARNALL

Lawyer

D: (02) 8123 1279

E: acarnall@ramsdenlaw.com.au



A SMARTER
PERSPECTIVE

T: 1300 749 709 | **W:** ramsdenfamilylaw.com.au

A: Level 3, 1 Castlereagh Street, Sydney NSW 2000

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From: Matthew Shepherd

Sent: Friday, September 20, 2024 8:14 AM

To: 'oshedden@delaneyroberts.com.au' <oshedden@delaneyroberts.com.au>; 'aroberts@delaneyroberts.com.au' <aroberts@delaneyroberts.com.au>

Subject: Cooke & Cooke - Family Law Matter

Dear Colleagues

I presume you have seen the property orders were made on 13 September.

We received into trust:

- \$128,953.98 on 27 August from ???
- \$134,967.12 on 28 August from ???
 - The total of the above is \$263,921.10.
- \$1,760 being refund of overpayment for property styling. Our client undertook to pay this amount as you client did not wish to do so. Our client should therefore be entitled to the refund.

The Orders provide that our client receive \$250,306 and your client the balance. After we pay \$250,306 to our client from the \$263,920.98, there will be \$13,615.10. Please confirm these calculations, and provide bank account details for the account to which your client wishes the payment of \$13,615.10 to be made.

Regards,

MATTHEW SHEPHERD
Special Counsel
Accredited Specialist in Family Law

D: (02) 8123 1229
E: mshepherd@ramsdenlaw.com.au



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BOOK A
MEDIATION WITH ME

LEAP Email Reference |F:13a2c02e-e331-436a-a90c-1bae78b97efc|M:6e00d064-8bc9-7f43-9844-5b2f315c783f|O:1948a019-7954-48f3-8602-c8834f0f3bf1| (Please do not delete)

Avalon Carnall <acarnall@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Mon, Sep 23, 2024 at 10:04 AM

Dear Stephen,

I believe Matthew explained last week that we owe an obligation at law to both parties regarding trust funds.

We're unable to unilaterally deal with the trust funds – we require consent from both parties.

It is in Heather's interest to respond to us as soon as possible as she is also owed funds.

If we don't hear back from Heather's solicitor today, I will call them tomorrow to seek a response.

I appreciate the delay is very frustrating.

Thanks, Stephen.

Regards,

AVALON CARNALL

Lawyer

D: (02) 8123 1279

E: acarnall@ramsdenlaw.com.au



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[Quoted text hidden]

[Quoted text hidden]

[Quoted text hidden]

[Quoted text hidden]

○ The total of the above is \$263921.10.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>

Mon, Sep 23, 2024 at 10:28 AM

To: Avalon Carnall <acarnall@ramsdenlaw.com.au>, Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Dear Avalon,

Thank you for your response. After reviewing the court orders dated 13 September 2024, it is clear that the distribution of the net proceeds from the sale of the property is court-ordered, with a specific amount allocated to me. Given this, I would like to clarify whether the release of the funds due to me is contingent upon a response from Delaney Roberts Specialist Family Lawyers.

Since these orders have been finalized by the court and both parties consented to them, I believe that any delay in releasing the funds is unnecessary unless there is a valid legal reason for further action or inquiry from their end.

I appreciate your assistance in this matter and look forward to resolving this promptly.

Kind regards,
Stephen Cooke

Follow me on LinkedIn: www.linkedin.com/in/stephen-cooke-b853702ab

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>

Mon, Sep 23, 2024 at 10:47 AM

To: Neill Cooke <cooke.neill@gmail.com>

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>

Mon, Sep 23, 2024 at 2:34 PM

To: Neill Cooke <cooke.neill@gmail.com>

I'm really struggling with not filing a complaint with the law society.

So apparently I have to pay money to have my lawyers send a formal demand letter to the other side to comply and at day 7 file an application with the court to have the registrar action on my behalf per 11. condition and seek costs.

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Final Property Orders.pdf

535K